



May 7, 2024

Sent via Electronic Mail

Mr. Ryan Degaris
44885 Boucaine
Temecula, CA 92592
rdegaris@gmail.com

**Re: Degaris, Ryan
NFA ID #397524**

Dear Mr. Degaris:

NFA has reviewed the May 1, 2024 disclosure document (Document) that was received on May 4, 2024 and noted several items that do not comply with NFA Rules and CFTC Regulations. Before you use the Document to solicit clients, you will need to make all of the corrections listed below and resubmit the Document to NFA.

1. The Introduction section of the Document includes an incorrect date of the Document (September 1, 2022). This information must be updated.
2. The material actions pertaining to Interactive Brokers must be current for the past five years and must be updated as of the date of the Document. The disclosures must include such actions as the CFTC administrative action #23-56 taken on 9/29/2023 in the amount of \$20,000,000.
3. As the Advisor presently recommends Interactive Brokers to its clients, the Document must also include the fees that may be charged by this FCM to the client (an approximate range is acceptable).
4. The Document states that neither a management fee nor an incentive fee is charged to the current clients. Please confirm to NFA whether this is still the case.
5. The top of the Performance History section of the Document states that the performance is being presented from January 2017 through July 31st 2022. As the past performance information in the capsule has been updated for the past five years and year-to-date, this line item must be updated as well.
6. As the 2018 monthly and annual performance returns exceed the required time period of the past five years and year-to-date, they must be removed from the past performance capsules of the Cycle Twin 11 and 12 programs.
7. In the past performance capsule for the Cycle Twin 11 program, the worst monthly draw-down must fall within the past five years and year-to-date.



8. In the past performance capsule for the Cycle Twin (11) program, the peak month and year in the worst peak-to-valley draw-down appear to be incorrect.
9. For the Advisor's past performance capsules included in the Document, please confirm to NFA whether the performance results are being presented net of the management and incentive fees as well as the commissions.
10. In the past performance capsule for the Cycle Twin 12 program, the peak month and year for the worst peak-to-valley draw-down appear to be incorrect based upon the rates of return provided in the capsule.
11. In the past performance capsule for the Cycle Twin program (13), the largest monthly draw-down and the largest peak-to-valley draw-down time periods and percentages appear to be incorrect based upon the rates of return provided in the capsules.
12. On page 25 of the Document in the section titled Acknowledgment of Receipt of Disclosure Document, the date of the Disclosure Document is incorrect.
13. Exhibit D, Privacy Policy, appears to be current as of September 1, 2022. If you wish to include this Exhibit, please ensure that the information is current as of date of the current Document.
14. Exhibit E, Interactive Brokers Disclosures appear to be provided as of 11/20/2020. If you wish to include this Exhibit, the information must be updated and must be current as of the date of the Document.

Please be advised that this Document may not be used to solicit clients until the above comments have been corrected, a revised Document has been filed, and the firm has received an acceptance notification from NFA. The use of this Document without NFA's acceptance will result in violations of NFA Rules and CFTC Regulations and could subject the firm to possible disciplinary action.

To facilitate NFA's review and acceptance process, the resubmission of this Document must include two attachments, one that is a clean copy and one that is "marked" to identify the deletions and additions that have been made to this Document. NFA will reject any future filings of this Document not in this format.

If I may be of assistance to you as you make the revisions, feel free to contact me at 212-513-6036.

Sincerely,

Yana Poretsky
Sr. Analyst
Compliance Department